



Tony White Group – Sharton Motors dealerships in Maitland, Port Stephens and Cardiff

MN-05017

Phase 1 Determination

Acquisition may be put into effect

9 June 2026

1. Determination and statement of reasons

Notified acquisition	TWG Hunter Dealerships Pty Ltd's (TWG Hunter Dealerships) proposed acquisition of 95% of the share capital of Sharton Motors Pty Ltd (Sharton Motors) (together, the Parties) and the land on which the motor dealership businesses owned by Sharton Motors are operated (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, TWG Hunter Dealerships is a special purpose vehicle associated with the Tony White Group (TWG). TWG operates a network of vehicle dealerships supplying new and used vehicles, as well as car servicing and repairs and OEM spare parts, across New South Wales (NSW), Queensland, Victoria and Tasmania. In the Newcastle and Hunter Valley region of NSW, TWG operates: • Cardiff Motor Group (comprised of Cardiff Ford, Nissan, Hyundai, Chery, and Volkswagen) • Highways Group in Rutherford (comprised of Highway Ford and Hyundai) • Kloster Motor Group (dealing Ford, Mitsubishi, Hyundai, Volkswagen, Nissan, Suzuki, Chery and other brands). The target, Sharton Motors operates four dealerships in the Newcastle and Hunter Valley region: • Maitland Toyota • Hunter GWM • Cardiff GWM • Port Stephens Toyota. Sharton Motors' dealerships supply new Toyota and GWM / Haval motor vehicles, used motor vehicles, car servicing and repairs, and OEM spare parts.
Overlap and relationship between the parties	The Parties overlap in the Newcastle and Hunter Valley region of NSW in the supply of: • new cars • used cars • car servicing and repairs • OEM spare parts.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers.

	For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, further information and documents provided by the Parties, market inquiry feedback, and publicly available information. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. <u>Regarding the supply of new cars:</u> • The market share aggregation resulting from the Acquisition is estimated to be low. • Post-Acquisition, the merged firm would be expected to face competition from multiple alternative suppliers of new cars, both on an intra-brand and inter-brand basis. <u>Regarding the supply of used cars:</u> • The market share aggregation resulting from the Acquisition is estimated to be low. • Post-Acquisition, the merged firm would be expected to face competition from multiple alternative suppliers of used cars. <u>Regarding the supply of car servicing and repairs and OEM spare parts:</u> • Given the Parties do not overlap on an intra-brand basis, the Parties are not likely to be close competitors in the supply of car servicing and repairs, and OEM spare parts (which dealerships generally only provide for the OEM brands they supply).
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act